

extreme or outrageous conduct on the part of Defendant.

With respect to the argument that there is no causal link between the emotional distress and the alleged concealment of notice of the assault, the Court is more concerned about there being no concealment of the April 18, 2023 assault, based on the facts alleged. Regarding the “previous attacks by this same student” that M.B. did not learn of until September 2023, there is not enough facts alleged about these to determine whether they are sufficient to have triggered a duty to inform M.B. earlier.

Defendant’s demurrer to Plaintiffs’ fifth cause of action for intentional infliction of emotional distress is SUSTAINED.

Ruling on the Demurrer

Defendant’s demurrer as to the fourth cause of action for negligent infliction of emotional distress and the fifth cause of action for intentional infliction of emotional distress is SUSTAINED. The Court is inclined to provide Plaintiffs one final chance to amend. Plaintiffs may file and serve an amended complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, Rule 3.1320(g).)

3. 9:00 AM CASE NUMBER: C24-01189
CASE NAME: M. B. VS. ANGELA STOCKARD
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT
FILED BY: RIDENOUR, REBECCA
TENTATIVE RULING:

Defendants West Contra Costa Unified School District (“District”), Rebecca Ridenour (“Ridenour”), and Vranda Booker (“Booker,” with District and Ridenour, “Defendants”) brings the instant demurrer to the third amended complaint (“TAC”) of plaintiff M.B., a minor (“M.B.”), through her guardian ad litem Rocio B., and Rocio B. (“Rocio,” together with M.B., “Plaintiffs”). Defendants challenge Plaintiffs’ second cause of action for negligent training and supervision, fourth cause of action for negligent infliction of emotional distress, and fifth cause of action for intentional infliction of emotional distress. For the reasons discussed below, the Court’s tentative ruling is to sustain Defendant’s demurrer as to the second cause of action for negligent hiring, supervision or retention, the fourth cause of action for negligent infliction of emotional distress and the fifth cause of action for intentional infliction of emotional distress.

Meet and Confer

The meet and confer requirement has been satisfied. (Kellie M. Murphy Decl., ¶¶ 3-5; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39

Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background

Plaintiffs filed the original Complaint in this matter on May 2, 2024, and the First Amended Complaint on October 7, 2024. Plaintiffs filed the Second Amended Complaint on March 24, 2025.

Plaintiffs filed the instant TAC on September 10, 2025. The TAC alleges five causes of action arising from incidents of sexual assault and harassment of Plaintiff M.B. by student, G.G., at J.O. Ford Elementary and Helms Middle School in Richmond and San Pablo, respectively, within the area of West Contra Costa School Unified District [WCCSD]. Plaintiffs contend that Defendants withheld knowledge of the incidents from M.B.’s mother, Rocio B., and failed to adequately protect M.B. from G.G., even after being informed of incidents of assault.

This Court sustained Defendants’ demurrer to the Second Amended Complaint on August 11, 2025, ruling: “Plaintiff Rocio B.’s allegations do not include detail sufficient to demonstrate that facts supporting the ruling in Phyllis P. are present in this case. Specifics with respect to the context and intent of ‘mistake’ and with respect to reporting and disclosing of the prior assaults is needed to support the elements of the emotional distress claims of Rocio B. at the pleading stage.”

Discussion

Negligent Hiring, Supervision, or Retention

To prevail on a cause of action for negligent hiring, supervision or retention, a plaintiff must prove the following: (1) Defendant hired, supervised or retained **an employee**; (2) the employee was or became unfit or incompetent to perform the work for which the employee was hired; (3) Defendant knew or should have known that the employee was or became unfit or incompetent to work, and that this unfitness or incompetence created a particular risk to others; (4) the employee’s unfitness or incompetence harmed Plaintiff; and (5) Defendant’s negligence in hiring/supervising/retaining the employee was a substantial factor causing Plaintiff’s harm. (CACI 426, emphasis added; *Jackson v. AEG*

Live, LLC (2015) 233 Cal.App.4th 1156, 1186.)

Defendants argue that Plaintiffs still fail to allege sufficient facts to state a cause of action for negligent hiring, supervision, or retention and that the new allegations at paragraphs 44, 46, and 47, are “conclusions, not facts . . .” (Demurrer MPA, pp. 4-7.) On Reply, Defendants focus on arguments that Plaintiffs failed to plead facts to show any District employee was unfit or incompetent, or that the District knew or should have known of such unfitness prior to M.B.’s alleged injury. (Reply, p. 1:16-19.) Plaintiffs cite to paragraphs 14, 16, 21, and 23, as supporting the element that the District knew or should have known that the employee was or became unfit or incompetent to work, and that this unfitness or incompetence created a particular risk to others, portraying this as the District having notice of prior misconduct and failing to take corrective action. (Opposition, pp. 4:24-5:6.) However, these paragraphs do not allege knowledge by the District of any employee shortcomings, only knowledge of G.G.’s actions and propensities. For example, paragraph 14 of the TAC alleges that G.G. harassed and assaulted M.B. and provides details of that, then goes on to allege that campus staff were informed of this behavior. Paragraph 16 alleges that after the April 18th incident, Defendants did not properly ensure M.B.’s safety and withheld information from Rocio, including “prior assaults” for which no additional facts are alleged. Paragraph 21 alleges that at least one other student was sexually assaulted by G.G. and that the District and its agents and employees knew about this fact. Paragraph 23 alleges that the District was notified on numerous occasions of the abuse from G.G., and failed to take any action to open a Title IX Complaint or report assaults to authorities or protect M.B. None of these allegations satisfy the third element for this claim, that Defendant knew or should have known that the employee was or became unfit or incompetent to work, and that this unfitness or incompetence created a particular risk to others.

Regarding employee’s being unfit, the Court finds that paragraph 47’s allegations that Ridenour and Booker were unfit because they lacked knowledge of the District’s “Board Policies and Regulations regarding Title IX Sexual Harassment and Uniform Complaint Procedures (UCP), including but not limited to knowledge of the policies and regulation and what each employee, administrator, and faculty’s roles and responsibilities where thereunder,” sufficient for pleading purposes.

However, the failure of Plaintiffs to plead knowledge by the District of any employee shortcomings requires the Court to SUSTAIN Defendants’ demurrer to Plaintiffs’ second cause of action for negligent hiring, supervision or retention.

Negligent Infliction of Emotional Distress

“Negligent infliction of emotional distress is a form of the tort of negligence, to which the elements of duty, breach of duty, causation and damages apply.” (*Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129.)

Defendants argue that California does not recognize a separate cause of action for negligent infliction of emotional distress (“NIED”). (Demurrer MPA, p. 5:15-20.) Defendants cite *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984-985, and *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072, for the proposition that NIED is not an independent tort. (*Ibid.*) The Court finds that just because NIED is not an independent tort does not mean that it cannot be separately pleaded as a distinct claim, as seeking damages for emotional distress based on negligence has its own unique elements to be pled and proven and serves the proper function of putting the other side on notice as

to what Plaintiffs are seeking.

Defendants argue that Plaintiffs' NIED claim is barred due to Government Code section 815, but they cite no case holding that Government Code section 815 bars NIED claims. (Demurrer MPA, p. 7:15-8:5.) The Court notes that the 2024 California Supreme Court case *Downey v. City of Riverside* (2024) 16 Cal.5th 539, involved an NIED claim against the City of Riverside, and the Court reversed the court of appeal for dismissing the claim on a technicality involving the elements of NIED. (*Id.*, at p. 561.) This argument is unavailing.

Defendants next argue that Plaintiffs have failed to amend this claim as per the instructions of this Court in the order sustaining Defendants' demurrer to the second amended complaint. (Demurrer MPA, p. 8:6-9:3.) Plaintiffs assert that the TAC now provides those specifics and that the allegations in the TAC are sufficient to state a cause of action for NIED under *Phyllis P. v Sup. Ct.* (1986) 183 Cal.App.3d 1193. (Opposition, p. 5:25-7:14.)

However, in *Phyllis P. v Sup. Ct.* (1986) 183 Cal.App.3d 1193, on which Plaintiffs rely to support this claim, the school officials made a decision to not inform the parent of the sexual assault, whereas here Defendants informed Rocio of the sexual assault of M.B. the day after the incident, which is distinguishable. (Compare TAC, ¶ 16 ["they also withheld that information from ROCIO B. not informing her of the April 18, 2023 incident until the evening of April 19, 2023, and this was by mistake."] with *Phyllis P. v. Superior Court* (1986) 183 Cal.App.3d 1193, 1195 ["together they decided not to notify petitioner of the incidents."].)

In *Phyllis*, the school officials "were deliberately usurping the parental prerogative to protect the child." (Opposition, p. 6:5.) Here, however, Rocio learned of the sexual assault the very next day and the school officials even "suggested that Rocio B that she come up with a plan on how to proceed." (TAC, ¶¶ 15-16.) This is not usurping Rocio's parental prerogative but explicitly giving it importance. This goes towards breach, as the duty is to notify the parents of the sexual assault and that is alleged to have happened here. (*Phyllis P. v. Superior Court* (1986) 183 Cal.App.3d 1193, 1196 ["defendants had a duty to notify petitioner upon learning of the first series of sexual assaults upon Ciera."].) Here, it is alleged that Defendants informed Rocio the very next day, which distinguishes the case here from *Phyllis*. (TAC, ¶ 16.) Although Rocio alleges that the disclosure here was made by mistake, there are insufficient facts alleged in the TAC regarding that to determine whether that fact is material and changes the result here. Defendants' demurrer to Plaintiffs' fourth cause of action for negligent infliction of emotional distress is SUSTAINED.

Intentional Infliction of Emotional Distress

"In order to state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (*Trerice v. Blue Cross of Cal.* (1989) 209 Cal.App.3d 878, 883.)

Defendants argue that Plaintiffs have not stated a claim for intentional infliction of emotional distress because they fail to allege extreme and outrageous conduct. (Demurrer MPA, pp. 9:18-10:3; Reply, p. 6:1-21.) Defendants also argue that Plaintiffs fail to adequately allege that Defendants acted

intentionally, or with reckless disregard, to cause emotional distress, and that the TAC shows no causal link between the emotional distress and the alleged concealment of notice of the assault. (Demurrer MPA, pp. 10:19-11:13; Reply, pp. 6:22-8:6.)

Plaintiff argues that the “TAC alleges intentional concealment and a pattern of cover-up that satisfies *Phyllis P.*,” and cites to paragraphs 7, 8, 16, 19, 73, 74, for the proposition that these “allegations establish the usurpation of parental prerogative identified in *Phyllis P. . .*” (Opposition, p. 6:10-27.)

As stated above, here, in contrast to Phyllis P., Defendants informed Rocio the day after the incident and sought her input on how to proceed, which does not show a cover-up or usurpation of parental prerogative. (TAC, ¶¶ 15-16.) Further, the Court does not believe that an accidental disclosure is a sufficient basis to conclude that absent the accidental disclosure there was an intent to forever withhold this information. The Court desires more factual information about how the information was provided to Rocio by mistake or accident and how that makes the one-day delay into something more serious. Plaintiffs allege that Defendant “directed, orchestrated, or allowed a cover-up of the sexual assault of M.B. to occur, failing to investigate it and failing to notify M.B.’s mother of the sexual assault of her daughter.” However, Plaintiffs also allege that M.B. was assaulted on April 18, 2023, and that this was reported to Rocio on the evening of April 19, 2023. The allegations of a cover up and failing to notify M.B.’s mother conflict with the allegations that Rocio was informed of the sexual assault the day after it occurred. “Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that adds *details* or *explanatory facts*, it is possible that a conflict or inconsistency will exist between the general allegation and the specific allegations. To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation.” (*Perez v. Golden Empire Transit District* (2012) 209 Cal.App.4th 1228, 1235-1236, italics added.) Here, under the facts pled, Plaintiffs do not plead extreme or outrageous conduct on the part of Defendants.

With respect to the argument that there is no causal link between the emotional distress and the alleged concealment of notice of the assault, the Court is more concerned about there being no concealment of the April 18, 2023 assault, based on the facts alleged. Regarding the “previous attacks by this same student” that M.B. did not learn of until September 2023, there are not enough facts alleged about these to determine whether they are sufficient to have triggered a duty to inform M.B. earlier.

Defendant’s demurrer to Plaintiffs’ fifth cause of action for intentional infliction of emotional distress is SUSTAINED.

Ruling on the Demurrer

Defendants’ demurrer as to the second cause of action for negligent hiring, supervision or retention, the fourth cause of action for negligent infliction of emotional distress, and the fifth cause of action for intentional infliction of emotional distress is SUSTAINED. The Court is inclined to provide Plaintiffs one final chance to amend these claims. Plaintiffs may file and serve an amended complaint within 10 days of notice of entry of this order. (CCP, §472b; CRC, rule 3.1320(g).)

4. 9:00 AM CASE NUMBER: C24-01669
CASE NAME: DIEGO RIVEROS VS. CHRISTOPHER MARCONI
*HEARING ON MOTION IN RE: FOR RELIEF FROM DEFAULT FILED BY CHRISTOPHER MARCONI
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Christopher Marconi's Motion for Relief from Default.

Defendant's motion is **DENIED** for the reasons set forth below.

Background Procedure

Plaintiff Diego Riveros, acting in pro per at the time, filed the complaint in this matter on July 1, 2024. It alleges a single cause of action for breach of contract against Defendant Christopher Marconi. On August 28, 2024, Plaintiff filed a Proof of Service of Summons indicating Defendant Marconi was personally served with the Summons and Complaint on August 6, 2024, at 1:45 p.m. at 3341 Power Inn Road, Sacramento, California. The Proof of Service indicates service was effectuated by a California registered process server.

Over ten months later, on June 18, 2025, Plaintiff sought and was granted a default against Defendant Marconi. Defendant Marconi filed the instant motion for relief from default on July 11, 2025. The hearing was originally set for October 27, 2025. On that date, the Court continued the hearing until December 22, 2025. On December 5, 2025, the Court granted the parties' stipulation to continue the hearing to March 30, 2026 – a date following the hearing on Defendant's counsel's motion to be relieved as counsel. The Court notes the Defendant's counsel's motion to be relieved as counsel was granted on March 23, 2026.

Legal Standard

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure section 473 (b). Code of Civil Procedure 473(b) provides, in relevant part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under Code of Civil Procedure section 473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.) "In such situations, 'very slight evidence will be required to justify a court in setting aside the default.'" (*Ibid. quoting Bailey v. Taaffe* (1866) 29 Cal.423, 424.)

"Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 24, quoting *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 235